Awal Global Consults Limited

COMPLIANCE CHECKLIST

Nigeria Data Protection Act 2023: Compliance Checklist

A practical checklist that turns the NDPA 2023 and the NDPC General Application and Implementation Directive (GAID) 2025 into actions a business can evidence.

Use	**Self-assessment or the starting point for a gap assessment**
Law	**Nigeria Data Protection Act 2023; GAID 2025**
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General guidance, not legal advice. This checklist summarises the main duties; it does not replace the text of the Act or advice on your circumstances. Section numbers refer to the NDPA 2023. Prepared by A.O. Abdullateef, Awal Global Consults Limited (RC-9282103).

How to use it

For each item, record **Yes**, **Partly** or **No**, and the evidence you could show the NDPC or a client (a policy, a record, a screenshot of a setting). Any "No" against Security or Breaches should be treated first.

Governance

	Requirement	NDPA ref.	Status	Evidence
☐	Name a person responsible for data protection (a Data Protection Officer where required)	s.32		
☐	Keep a record of what personal data you hold, why, where, who can see it and how long you keep it	s.24, s.29		
☐	Check whether you are a data controller or processor of major importance and register with the NDPC if so	s.44		
☐	File the annual compliance audit return where it applies (deadline 30 May; check the NDPC's current guidance)	GAID 2025		
☐	Train staff who handle personal data, and keep attendance records	s.39		

Lawful processing

	Requirement	NDPA ref.	Status	Evidence
☐	Identify a lawful basis for each use of personal data (consent, contract, legal obligation, vital interest, public task or legitimate interest)	s.25		
☐	Where you rely on consent, make it freely given, specific, informed and recorded, and as easy to withdraw as to give	s.26, s.35		
☐	Collect only the data you need and delete it when no longer needed	s.24		
☐	Apply extra care to sensitive data (health, religion, biometrics and similar) and children's data	s.30, s.31		

Transparency

	Requirement	NDPA ref.	Status	Evidence
☐	Publish a clear privacy notice on your website, forms and other collection points	s.27		

	Requirement	NDPA ref.	Status	Evidence
☐	Tell people who you are, what you collect, why, who you share it with, how long you keep it and their rights	s.27		

Data subject rights

	Requirement	NDPA ref.	Status	Evidence
☐	Have a process to handle requests to access, correct, delete or move personal data	s.34, s.38		
☐	Handle objections to processing, including direct marketing	s.36		
☐	Explain and allow review of decisions made only by automated means	s.37		

Security

	Requirement	NDPA ref.	Status	Evidence
☐	Use appropriate technical and organisational measures: two-step verification, access control, encryption, backups, updates	s.39		
☐	Assess the impact before high-risk processing (Data Protection Impact Assessment)	s.28		
☐	Put written data processing terms in place with suppliers who process personal data for you	s.29		

Breaches

	Requirement	NDPA ref.	Status	Evidence
☐	Have a written breach response plan with roles and contacts	s.40		
☐	Notify the NDPC within 72 hours of becoming aware of a breach likely to risk people's rights and freedoms	s.40		
☐	Tell affected people promptly where the breach is likely to cause them high risk, with steps they can take	s.40		
☐	Keep a record of every breach, even ones you do not report	s.40		

International transfers

	Requirement	NDPA ref.	Status	Evidence
☐	Know which personal data leaves Nigeria (for example cloud, email and marketing tools) and record the legal basis for each transfer	s.41–43		

Penalties under the Act can reach the higher of ₦10 million or 2% of annual gross revenue for a data controller or processor of major importance, and the higher of ₦2 million or 2% for others (s.48). Good records are the best defence.